

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

HUMAN RIGHTS LAW

INTRODUCTION TO HUMAN RIGHTS LAW

OUTLINE:

- INTRODUCTION TO AND DEFINITION OF HUMAN RIGHTS
- CHARACTERISTICS OF HUMAN RIGHTS
- HISTORY OF HUMAN RIGHTS
- SOURCES OF HUMAN RIGHTS
- CATEGORIES OF HUMAN RIGHTS
- HUMAN RIGHTS INSTRUMENTS
- HUMAN RIGHTS IN THE NIGERIAN CONSTITUTION
- LIMITATIONS OF HUMAN RIGHTS
- ENFORCEMENT OF HUMAN RIGHTS

1. INTRODUCTION TO AND DEFINITION OF HUMAN RIGHTS

In legal theory, there is a distinction between duties, privileges and rights. Duties are obligations that must be fulfilled by citizens of a particular country or foreigners residing in the country. Duties may be compulsory such as the duty to pay tax and the duty to be law abiding. Duties may be voluntary such as the duty to vote or the duty to be patriotic. Duties may also arise in emergency situations such as the duty of all men to join the army and defend their country in times of war.

Privileges are benefits, advantages or immunities enjoyed by a class of the society that is not enjoyed by the rest of the society. Privileges exempt people from the performance of a duty, obligation or liability. Examples of privileges in Nigeria include tax exemption for all investors in the agricultural sector, lower entrance requirement into federal institution for educationally disadvantaged states, free medical treatment for top government officials, immunity for legislative, judicial and executive officials etc.

Rights refer to legal entitlements to own something or to do something. Therefore, human rights can be defined as inalienable, fundamental rights to which a person is inherently entitled simply because he or she is a human being. Human Rights are standards of human behavior that are protected in domestic and international law. In the case of **ASEMOTA V YESUFU** the court stated that: 'fundamental right is an undoubted inalienable right, which corresponds to a law common to everyone.'

2. CHARACTERISTICS OF HUMAN RIGHTS

They are fundamental. This means that they are indispensable. People cannot and should not live without them. This is why they are entrenched in the constitution. Entrenched means to be deep rooted or embedded. In the case of **SOFEKUN V AKINYEMI**, **Hon Justice Fatayi-Williams** noted that issues of Fundamental Rights are so important to the life, liberty and well-being of any individual that they can be raised at any stage of a court's proceeding.

They are universal in that they must apply to everyone irrespective of tribe, religion, social status etc. If any right does not apply to every citizen in a state it is not a human right. This is the difference between rights and privileges. Privileges apply to a class in the society, rights apply to everyone.

They must be respected by both the state and individuals.

They are egalitarian. This means they must apply to everyone equally. They must apply the same for everyone.

They constitute a mandatory obligation against the state in the sense that they cannot be taken away except through the due process of the law.

They ought to be enforceable by individuals.

They are closely associated with the rule of law.

3. HISTORY OF HUMAN RIGHTS

The earliest conception of human rights is traceable to the Greek Civilization. In this era, human rights were equated with divine law. In this era, it was considered that divine law required certain rights be respected such as the right to fair hearing and liberty. The Greek conception of human rights was adopted in the Roman civilization.

Subsequently, men came up with the idea of entrenching rights in highly important documents. An example was the **Magna Carta of 1215**. The Magna Carta was a document written by the Arch-Bishop of Canterbury to make peace between the King of England, some rebels in England and the church. The document provided for the recognition of the rights of church rights, freedom from illegal imprisonment and swift justice.

The most important events that influenced the evolution of human rights were the world wars 1 and 2. During World War 1, the citizenry of some European states suffered the violation of their fundamental human rights. This was attributed to the fact that certain ethnic minority peoples in Europe had been forcefully annexed into other states. The League of Nations was therefore established to address this issue. President Woodrow Wilson of the United States recommended a

post war global political order in which ethnically identifiable peoples govern themselves. This was the basis for the dismantling of 'defeated empires' in Europe such as the Austro-Hungarian and the Ottoman empires.

However, human rights were brought down to the level of individual rights by World War 2. The large scale human rights abuses of World War 2 inspired two important steps in the evolution of human rights. The first was the fact that the United Nations was established to replace the League of Nations and the United Nations Charter on Human Rights was enacted in 1948. This Charter comprehensively provided for the recognition of human rights. This Charter inspired several regional charters on human rights such as the African Charter on Human and People's Rights which was adopted in 1981. The passage of the Universal Declaration on Human Rights also inspired the entrenching of fundamental human rights in most constitutions of the world.

4. SOURCES OF HUMAN RIGHTS

Sources of human rights means the basis by which a person is entitled to human rights. It must be emphasized that although constitutions are emphasized as the basis of human rights they are not the source of human rights. It is universally accepted today that we do not have human rights because it is written in our constitution but we have human rights because we are human beings. The constitution only guarantees human rights but the source of human rights is the fact that we are human beings. Thus, were a government repeals all its provisions on human rights in its constitution the citizen still have human rights. This is always the case for military governments. This was the case when Nigeria was under military rule. In **WANG CHING YAO AND OTHERS V. CHIEF OF ARMY STAFF, SUPREME HEAD QUARTERS, LAGOS** an application was brought to the Federal High Court, Lagos State to order the release of 4 Taiwanese nationals who had been detained by the Nigerian military government for weeks without trial. In refusing to grant the application, **Ademola J.** stated that: 'My view is that the combined effect of Decree number 2 of 1984 (which empowered the military government to detain anyone for a renewable period of 3 months without trial if they were a threat to security) and Decree Number 13 of 1984 (which exempted the court from having jurisdiction to examine the validity of any action taken by the military government) is that on the question of civil liberties, the law courts of Nigeria must as for now blow muted trumpets.' Decree number 2 and 13 effectively made the provisions of fundamental human rights impotent. Nevertheless, these four Taiwanese were entitled to their right to liberty. In the case of **ATTORNEY GENERAL FEDERATION V ATTORNEY GENERAL BENDEL STATE** it was noted that the fact that the constitution was not the source of human rights implied that these rights cannot be waived by the state. Similarly, in the Indian Case of **RE KERALA EDUCATION BILL** it was stated that the fact the constitution is not the source of these rights implied that a person does not lose a fundamental human right on the ground of its non-exercise.

5. CATEGORIES OF HUMAN RIGHTS IN INTERNATIONAL LAW

Human rights can be categorized in 2 ways: according to their subject matter and according to their beneficiaries. According to their subject matter, Karel Vasak, the French Scholar, categorized them into:

a. First Generation Rights: The first generation rights are civil and political rights which include inter alia the rights to life, liberty and security of persons. First generation rights are recognized internationally in such instruments as the International Covenant on Civil and Political Rights of 1966.

b. Second Generation Rights: Second generation rights which focus on equality are economic, social and cultural rights. These rights include inter alia the right to employment, the right to social security, the right to housing. Internationally, these rights are recognized in the International Covenant on Economic, Social and Cultural Rights of 1966.

c. Third Generation Rights: Third generation rights cover group or collective rights which include inter alia: the rights to self-determination, natural resources, healthy environment and development. Third generation rights at the international level are contained in the International Labour Organization Conventions 107 and 169 of 1957 and 1989 and the United Nations Declaration on the Right of Indigenous Peoples of 2007.

Human Rights can also be categorised according to their beneficiaries:

a. Individual Rights: These are rights for individuals to be enforced by the individuals themselves or by others on behalf of the individual. Most national constitutions of countries provide for individual rights. Chapter 4 of the Nigerian 1999 Constitution provide for individual rights.

b. Collective Rights: These rights are group rights to be enforced by groups as a collective unit. These rights are usually adopted by disadvantaged groups in states. An example is the indigenous peoples rights which are enforced by the aboriginal people of Australia and the Indians of the Americas.

c. Minority Rights: These are individual rights as they are enforced by individuals. But there is a communal quality in them as individuals enjoy them in community with others. These rights aim at protecting the minorities in a state. Article 27 of the International Covenant on Civil and Political Rights recognize these rights.

6. HUMAN RIGHTS INSTRUMENTS

Human Rights instruments refer to the international and domestic laws that protect human rights. Human rights are protected in 3 levels: at the international level, at the regional level and at the national level. The international level refers to the global level. Human rights at this level are

protected by instruments such as the Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights of 1966 and the International Covenant on Economic, Social and Cultural Rights of 1966. The regional level refers to the continental level. Human rights are protected in Africa by the African Charter on Human and People's Rights. The national level refers to the domestic laws of states. Human rights are protected at this level by the constitution.

7. HUMAN RIGHTS IN THE NIGERIAN CONSTITUTION

In Nigeria, human rights are protected in chapter 4 of the constitution of Nigeria, 1999. It must be emphasized that only Civil and Political Rights or First Generation Rights are protected. Chapter 4 of the Constitution are enforceable in courts in Nigeria. Economic and Social Rights or Second Generation Rights are contained in the Nigerian Constitution 1999. But they are contained in Chapter 2 of the Constitution of Nigeria 1999. Chapter 2 of the constitution contains the fundamental objectives and directive principles of state policies. This chapter is non-justiciable or unenforceable because section 6(6)(c) of the Constitution excludes it from the jurisdiction of the Nigerian courts. This chapter was included in the constitution as mere aspiration that the Nigerian government aims to accomplish. In **A.G. Ondo State v A.G. Federation**, the Supreme Court stated that: 'it is well established as per S. 6 (6)(c) of the Constitution that rights under the Fundamental objective and Directive Principles of State Policy are not justiciable except as otherwise provided in the Constitution.' In **Okogie v The Lagos State** the Court of Appeal in interpreting Chapter II of the Constitution held as follows: The Fundamental Objectives identify the ultimate objectives of the nation and the Directive Principles lay down the policies which are expected to be pursued in the efforts of the nation to realize the national ideals. Section 6 (6) (c) of the constitution ensures no court has jurisdiction to pronounce any decision as to whether any organ of government has acted or is acting in conformity with the fundamental objectives and Directive principles of State Policy.

8. LIMITATION OF HUMAN RIGHTS

Firstly, it must be stressed that no right is absolute. Every right has the limits of reasonableness and common sense. There are 2 main constitutional limitations of fundamental human rights. The first limitation is the limitation contained in the section defining the right. For instance **section 33 of the constitution of Nigeria 1999** provides that every citizen of Nigeria has a right to life and no one shall unlawfully be deprived of his right to life except in the execution of a court sentence. This same section provides that a person may be deprived of his right to life in the defence of another person from unlawful violence or in the process of a lawful arrest or in the prevention of escape from lawful arrest or in the suppression of a riot. Most of the rights in chapter 4 of the 1999 Constitution of Nigeria contain similar exceptions or limitations.

The second limitation is contained in section 45 of the constitution of Nigeria 1999. Section 45 provides that as regards the right to privacy, the right to freedom of religion, the right to freedom of assembly and the right to freedom of movement, the government may by any law that is reasonable and justifiable in a democratic society limit these rights in the interest of defence, public safety or public order. In **DOKUBO ASARI V FEDERAL REPUBLIC OF NIGERIA**, it was stated that where national security is threatened or there is a likelihood of it being threatened human rights will take second place and must be suspended till national security can be protected or well taken care of.

9. ENFORCEMENT OF HUMAN RIGHTS

Anybody whose fundamental human rights has been violated can enforce it by applying to the High Court for the enforcement of his right. **Section 46(1) of the constitution** provides that: 'Any person who alleges that any of the provisions of this Chapter has been, is being or is likely to be contravened in any State in relation to him may apply to a High Court in that State for redress.' **Section 46(2) of the 1999 Constitution** empowers the High court to make such orders or issue such writs and give such directions as it may consider appropriate. On the basis of this the High Court would issue injunctions. If a person has been deprived of his right to liberty the court would issue an order of Habeas corpus. If a person has been deprived of his right to property the court would issue an order of mandamus.